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COURT OF CRIMINAL APPEALS
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CLERK

No. ___________________

TO THE COURT OF CRIMINAL APPEALS
OF THE STATE OF TEXAS

SAMUEL UKWUACHU,	APPELLANT
v.	
THE STATE OF TEXAS,	APPELLEE

Appeal from McLennan County

* * * * *

STATE'S PETITION FOR DISCRETIONARY REVIEW

* * * * *

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FILED IN
COURT OF CRIMINAL APPEALS

April 20, 2017

ABEL ACOSTA, CLERK

IN THE COURT OF CRIMINAL APPEALS OF TEXAS

No. PD-0366-17

Samuel Ukwuachu, Appellant

v.

The State of Texas, Appellee

Appeal from McLennan County

STATE'S PETITION FOR DISCRETIONARY REVIEW

The State of Texas

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April 20, 2017

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NAMES OF ALL PARTIES TO THE TRIAL COURT'S JUDGMENT

The parties to the trial court's judgment are the State of Texas and Appellant, Samuel Ukwuachu.

The case was tried before the Honorable Matt Johnson, 54th District Court, McLennan County, Texas.

Counsel for Appellant at trial was Jonathon P. Sibley, 801 Washington Avenue, Suite 300, Waco, Texas 76710. Counsel for Appellant on appeal was William A. Bratton, III, 2828 Routh Street, Suite 675, Dallas, Texas 75201.

Counsel for the State at trial were Hilary LaBorde and Robert Moody, Assistant Criminal District Attorneys. Counsel for the State on appeal and before this Court is Sterling Harmon, Chief Appellate Assistant Criminal District Attorney, 219 North 6th Street, Suite 200, Waco, Texas 76701.

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STATEMENT REGARDING ORAL ARGUMENT

The State requests oral argument. The State is asking this Court to decide an important issue regarding the scope of the Texas "Rape Shield" law as expressed under Rule of Evidence 412, and its interplay with other rules of evidence. Namely, the purpose of Rule 412 as a rule of exclusion designed to protect victims of sexual assault has been called into question by the opinion of the court below. Determination of this case will require consideration of competing evidentiary doctrines and the proper balance to be struck between them. Discussion will help to clarify these matters and resolve the issues presented.

STATEMENT OF THE CASE

Appellant pleaded not guilty to the offense of Sexual Assault. He was found guilty at jury trial and sentenced to probation. Appellant presented six points of error on appeal to the 10th Court of Appeals. The court of appeals first overruled Appellant's complaint as to the sufficiency of the indictment, as a finding for Appellant on that point would have afforded greater relief than his other points of error. The court of appeals then found that the trial court had erred in refusing to admit text messages under Rules of Evidence 412 and 107. The court of appeals reversed the conviction and remanded the case for a new trial.

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STATEMENT OF THE CASE

Appellant pleaded not guilty to the offense of Sexual Assault. He was found guilty at jury trial and sentenced to probation. Appellant presented six points of error on appeal to the 10th Court of Appeals. The court of appeals first overruled Appellant's complaint as to the sufficiency of the indictment, as a finding for Appellant on that point would have afforded greater relief than his other points of error. The court of appeals then found that the trial court had erred in refusing to admit text messages under Rules of Evidence 412 and 107. The court of appeals reversed the conviction and remanded the case for a new trial.

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STATEMENT OF PROCEDURAL HISTORY

On March 22, 2017, the court of appeals reversed appellant's conviction in an unpublished opinion and remanded for a new trial. *[illegible] v. State*, [illegible]376-CR, 2017 WL 1101284 (Tex. App.—Waco Mar. 22, 2017). No motion for rehearing was filed. The State's petition is due on April 21, 2017.

GROUNDS FOR REVIEW

1. The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.
2. The court of appeals' failure to conduct a proper harm analysis so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.

ARGUMENT AND AUTHORITIES

The court of appeals misapplied the governing evidentiary standard.

The court of appeals' opinion departed from this Court's precedent and misapplied the app[illegible] standard of review. The State's [illegible] evidentiary [illegible] and the court of appeals' analysis under Rules of Evidence 412 and 107.

The failure to conduct a proper harm analysis requires review.

The court of appeals' failure to conduct a proper harm analysis also calls for this Court's review. The petition requests review of the court of appeals' decision and remand for consideration of Appellant's remaining points of error.

PRAYER FOR RELIEF

WHEREFORE, the State of Texas prays that the Court of Criminal Appeals grant this Petition for Discretionary Review, reverse the court of appeals decision and remand the case so that the court of appeals can consider Appellant's remaining points of error.

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CERTIFICATE OF COMPLIANCE

The undersigned certifies that according to the Microsoft Word 2010 word count tool the applicable portion of this document contains 3,053 words.

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below: William A. Bratton, III, 2828 Routh Street, Suite 675, Dallas, Texas 75201, bill@brattonlaw.com; and Stacey M. Soule, State Prosecuting Attorney, P.O. Box 13046, Austin, Texas 78711, information@spa.texas.gov.

/s/ Sterling Harmon
Sterling Harmon
Chief Appellate Assistant Criminal District Attorney

/s/ Sterling Harmon
STERLING HARMON
Chief Appellate
Assistant Criminal District Attorney

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below.

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